

HOUSE BILL No. 1182

DIGEST OF INTRODUCED BILL

Citations Affected: IC 35-31.5-2; IC 35-45-4-9.

Synopsis: Digital sexual image abuse. Defines "digital sexual image" as a digital, computer generated image or video that is created or modified to depict: (1) sexual intercourse; (2) other sexual conduct; or (3) exhibition of certain body parts; of a quality, characteristic, or condition, such that it appears to depict an individual. Establishes the offenses of possession of a digital sexual image and distribution of a digital sexual image.

Effective: July 1, 2026.

Bauer M, Haggard

January 5, 2026, read first time and referred to Committee on Courts and Criminal Code.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1182

A BILL FOR AN ACT to amend the Indiana Code concerning criminal law and procedure.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 35-31.5-2-94.5, IS ADDED TO THE INDIANA
2 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
3 [EFFECTIVE JULY 1, 2026]: **Sec. 94.5. "Digital sexual image", for**
4 **purposes of IC 35-45-4-9, has the meaning set forth in**
5 **IC 35-45-4-9.**

6 SECTION 2. IC 35-31.5-2-100, AS AMENDED BY P.L.186-2025,
7 SECTION 204, IS AMENDED TO READ AS FOLLOWS
8 [EFFECTIVE JULY 1, 2026]: Sec. 100. (a) "Distribute", for purposes
9 of IC 35-45-4-8 **and IC 35-45-4-9**, has the meaning set forth in
10 IC 35-45-4-8.

11 (b) "Distribute", for purposes of IC 35-46-1-10, has the meaning set
12 forth in IC 35-46-1-10(f).

13 (c) "Distribute", for purposes of IC 35-46-1-10.2, has the meaning
14 set forth in IC 35-46-1-10.2(g).

15 (d) "Distribute", for purposes of IC 35-47.5, has the meaning set
16 forth in IC 35-47.5-2-6.

17 (e) "Distribute", for purposes of IC 35-48, has the meaning set forth



in IC 35-48-1.1-13.

(f) "Distribute", for purposes of IC 35-49, has the meaning set forth in IC 35-49-1-2.

SECTION 3. IC 35-45-4-9 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 9. (a) This section does not apply to:**

(1) a digital image or video that is distributed:

(A) to report a possible criminal act;

(B) in connection with a criminal investigation;

(C) under a court order; or

(D) by a news reporting or an entertainment medium (as defined in IC 32-36-1-4);

(2) a newspaper or news service that publishes news related information through a website;

(3) a cloud service provider; or

(4) an Internet provider, an affiliate or subsidiary of an Internet provider, or a search engine that:

(A) solely provides access or connection to a website or other Internet content that is not under the control of that Internet service provider, affiliate or subsidiary, or search engine; and

(B) is not responsible for creating or publishing the content that constitutes material harmful to minors.

(b) As used in this section, "digital sexual image" means a digital, computer generated image or video that is created or modified by means of artificial intelligence, a computer software program, an application, or other editing tools that depicts:

(1) sexual intercourse;

(2) other sexual conduct (as defined in IC 35-31.5-2-221.5); or

(3) exhibition of the uncovered buttocks, genitals, or female breast;

of a quality, characteristic, or condition such that it appears to depict an individual.

(c) As used in this section, "distribute" has the meaning set forth in section 8(b) of this chapter.

(d) A person who:

(1) creates; or

(2) possesses;

a digital sexual image without the consent of the individual depicted in the digital sexual image commits digital sexual image abuse, a Class B misdemeanor.

(e) An offense under subsection (d) is a:



- 1 **(1) Class A misdemeanor if the person has one (1) prior**
2 **unrelated conviction under subsection (d); or**
3 **(2) Level 6 felony if the person has more than one (1) prior**
4 **unrelated conviction under subsection (d).**
5 **(f) A person who distributes a digital sexual image without the**
6 **consent of the individual depicted in the digital sexual image**
7 **commits distribution of a digital sexual image, a Class A**
8 **misdemeanor. However, the offense is a Level 6 felony if the person**
9 **has a prior unrelated conviction under this subsection.**

